

TENTATIVE RULINGS

DEPT. CM7

If the tentative rulings below are for a past date, please try the following to force a refresh of this page:

For a Windows-based computer, press "Cntrl" + "Shift" + "R" at the same time.

For an Apple computer, press "Cmd" + "Shift" + "R" at the same time.

TENTATIVE RULING

Date: 05/20/2026

Case #	Case Name	Tentative
01508456	Meyers – Trust	TENTATIVE RULING Case: Meyers – Trust 01508456 Calendar No.: 1 Date: 05/20/26
		MOTION TO TRANSFER VENUE (ROA 8) Trustee Erinn Wells ("Trustee") moves to transfer venue to Mono County. Petitioner Donica Wells ("Petitioner") has not opposed this motion despite proof of service. The court finds that venue is proper in Mono County pursuant to Probate Code section 17005(a)(2), as the principal place of trust administration is in Bridgeport, California, in Mono County. Trustee's Motion to Transfer Venue to Mono County is GRANTED. <u>TRANSFER ORDER AND SUBSEQUENT PROCEEDINGS</u> The court orders this matter to be transferred, upon payment of all the necessary fees and costs required by law, to the Superior Court of California for the County of Mono. The clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court.

		Petitioner is ordered to pay all necessary fees and costs for the transfer. If those costs and fees are not paid within 30 days after the date of this order, the court may, on a duly noticed motion by any party or the court's own motion at a Review Hearing re Transfer, dismiss this proceeding without prejudice. The clerk shall give notice of this order to the transfer clerk. A Review Hearing re Transfer is set for 08/26/26 at 1:30pm in Department CM07 in connection with ruling on this motion. No appearance will be necessary if the matter is transferred before that date. The hearing on Petition currently set for 06/11/26 at 9:00 AM in Dept. CM06 is ADVANCED to this date and ordered OFF-CALENDAR. Counsel for Trustee is ordered to give notice of this ruling to all persons entitled to notice in this case.
01430250	Inouye - Trust	TENTATIVE RULING Case: Inouye - Trust 01430250 Calendar No.: 3 Date: 05/20/26
		<u>MOTION TO QUASH SUBPOENA (ROA 271)</u> On 9/29/25, Proposed Conservatee Laura Michiko Inouye, by and through her court-appointed counsel, W. Rod Stern, moved to quash a subpoena issued to Charles Schwab & Co, Inc. by Petitioner/Respondent Kimberly Woodroof. The subpoena was withdrawn after the case settled. Judgment was entered on or about 5/11/26. (ROA 340.) Laura requests that this motion go forward as to the issue of fees. Laura's notice of motion seeks attorney's fees under Code of Civil Procedure section 1987.2(a), which states in full as follows: (a) Except as specified in subdivision (c), <i>in making an order pursuant to motion made under subdivision (c) of Section</i>

		1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive. (Emphasis added.) Based on the foregoing language, making a ruling under Section 1987.1. (i.e., to quash, modify, or limit the subpoena) is a condition precedent to awarding expenses in connection with the motion. Here, the court is not making an order under Section 1987.1. While the mootness of a discovery motion does not eliminate the right to an award of sanctions requested under the Discovery Act (see e.g., Cal. Rules of Court, Rule 3.1348), Code of Civil Procedure section 1987.2 is not under the Discovery Act. The plain language of Section 1987.2 leaves the court without discretion to award sanctions. Furthermore, the court does not find that the motion was made or opposed without substantial justification. The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." (<i>Doe v. U.S. Swimming, Inc.</i> (2011) 200 Cal.App. 4th 1424, 1434.) The court finds a reasonable basis in law and fact for the arguments advanced by both parties in this case. The motion for sanctions pursuant to Code of Civil Procedure section 1987.2 is DENIED. Moving party is ordered to give notice of this ruling unless notice is waived at the hearing.
01395059	Hamilton – Trust	TENTATIVE RULING Case: Hamilton – Trust 01395059 Calendar No.: 5 Date: 05/20/26
		MOTIONS TO COMPEL INITIAL RESPONSES TO DISCOVERY (ROA 60, 61, AND 62)

	Petitioner Jennifer Pierce moves to compel initial responses to form interrogatories, special interrogatories, and a demand for production of documents from Respondent James J. Pierce. These motions are unopposed despite proof of service. All three motions are GRANTED. The evidence before the court is that Petitioner propounded first sets of Form Interrogatories, Special Interrogatories, and a Demand for Production of Documents on Respondent on 10/1/24. The deadline to respond to discovery was extended to 3/7/25. No responses to the discovery have been served to date. Moving party need not show anything more to obtain an order compelling initial responses to discovery. (Code of Civ. Proc. §§ 2030.290; 2031.300 see also <i>Leach v. Sup.Ct.</i> (1980) 111 Cal.App.3d 902, 905-906 Pursuant to Code of Civil Procedure sections 2030.290(c) and 2031.300(c), the court awards reasonable attorney’s fees against Respondent James J. Pierce in the amount \$4,005.00 total for all three motions (2.5 hours per motion and 1 hour for appearance x \$450 ph + \$60 per motion in filing costs). <u>ORDERS</u> The court ORDERS Respondent James J. Pierce to respond to the Form Interrogatories, Set One; Special Interrogatories, Set One; and Demand for Production of Documents, Set One, without objection within 10 days of notice of this ruling, extended for method of service. The court imposes reasonable sanctions of \$4,005.00 against Respondent James J. Pierce payable within 30 days of notice of this ruling, extend for method of service, or any further date as agreed upon by the parties in writing. Counsel for moving party is ordered to give notice of this ruling.
	TENTATIVE RULING Case: Calendar No.: Date: _____

[illegible]

		Case: Calendar No.: Date:
--	--	---